



Notification Waiver Determination

Midea Group – Esaote

Acquisition	Midea Imaging Technology (Shanghai) Co., Ltd. (the Acquirer) applied for a notification waiver in respect of its proposed indirect acquisition of 77.5% of the share capital in Esaote S.p.A (Esaote), as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition will result in Midea Group Co., Ltd. (Midea) owning 87.73% of the issued share capital of Esaote.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	21 May 2026

Parties to the Acquisition	Midea is a global technology group organised into several divisions, including Smart Home, Industrial Technology, Intelligent Building Technology, Robotics & Automation, Energy Solutions, Healthcare and Smart Logistics, among others. The Acquisition concerns Midea's Healthcare division, which Midea operates mainly through the Acquirer, and its listed affiliate Beijing Wandong Medical Technology Co., Ltd. (Wandong). Wandong supplies medical imaging products and services. It supplies magnetic resonance imaging (MRI), computed tomography, digital subtraction angiography, and digital radiography equipment, primarily in mainland China. The Acquirer also owns the business of Carestream Healthcare International Company Limited (Carestream). Carestream is a worldwide provider of medical imaging systems; X-ray imaging systems for non-destructive testing; and printing and film products. Esaote is an international medical technology group that operates in the field of medical diagnostic equipment, primarily ultrasound systems, open and dedicated MRI systems designed for musculoskeletal and extremity imaging, and healthcare information technology. Midea and Esaote overlap in the supply of medical imaging systems and equipment in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap in the supply of medical imaging systems and equipment, and the increase in share of supply arising from the Acquisition would be small b. there is no horizontal overlap between the parties in the various categories of medical imaging systems and equipment products that each supply c. there are several alternative suppliers of medical imaging systems and equipment to customers in Australia d. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of different medical imaging systems and equipment products post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
--	---

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act